AxarquíaHome



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Checklist: selling or renting out your home in the Axarquía

Paperwork in order, sprucing up, choosing an agent, tax on the sale, and what to arrange if you rent out.

Frigiliana on the mountainside

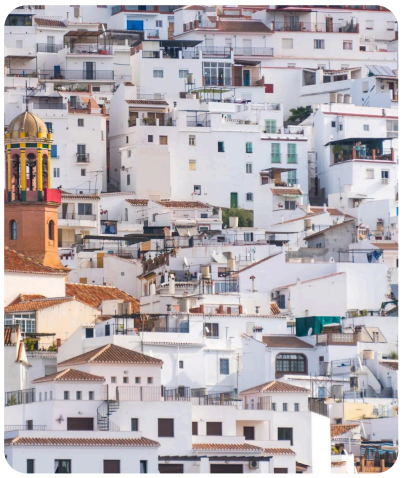
Welcome to the Axarquía

White villages against the mountains, terraces full of olive, almond and avocado trees, and a coastline of little coves beneath the cliffs. The Axarquía, east of Málaga, is one of the most beautiful places in Andalusia to live.

With around 300 days of sunshine a year, Málaga airport about an hour's drive away and villages such as Frigiliana, Cómpeta and Nerja, it is easy to see why so many Dutch, German, Swedish and British people have a home here. A house in this region does need the right approach, and that is what this checklist helps with.



Nerja



Cómpeta



Frigiliana

> Selling or renting out a house in the Axarquía goes best when the paperwork is right and the house looks cared for. A missing permit or an old leak can hold up a sale for months or push the price down.
>
> This checklist helps you get the house ready for the market, choose the right people and not forget any costs or obligations.



The village square of Canillas de Albaida

1. Paperwork in order

Buyers and their lawyers will ask for all of this. Having it ready sells faster.

- [ ] Title deed (escritura) and a recent nota simple from the land registry
- [ ] Land registry and cadastre match what is really there (size, outbuildings, pool)
- [ ] Permits for extensions, or an AFO for a finca on rural land
- [ ] Energy certificate (certificado energético): required for sale and rental
- [ ] Habitation certificate or first occupancy licence where needed
- [ ] Latest IBI bill, rubbish tax and water and electricity bills
- [ ] For an apartment: a statement from the community of owners that no debt is owed



Cómpeta

2. Sprucing up before the sale

Buyers see what is wrong first. Small defects often cost more in negotiation than to repair.

- [ ] Damp patches and cracks repaired, not just painted over
- [ ] Façade and walls whitewashed, frames and shutters painted
- [ ] Dripping taps, broken tiles and sticking doors fixed
- [ ] Garden, terrace and pool tidy
- [ ] House empty enough to show the space
- [ ] Possibly your own survey beforehand, so you are not surprised

What buyers see first

A stain on the ceiling or flaking paint gives buyers a reason to negotiate. Have it repaired before the photos are taken.



Rising damp: flaking paint at the bottom of a wall



A leak: a damp stain in the corner of the ceiling



A cove below the cliffs of Nerja

3. Agent and price

- [ ] Two or three agents asked for a valuation, and their figures compared
- [ ] Commission, exclusivity and contract term clear
- [ ] Checked that the agent is on the Andalusian register
- [ ] Good photos and a floor plan
- [ ] Asking price compared with recent sales in the village
- [ ] Agreed who handles viewings when you are away



Steps in the old quarter of Frigiliana

4. Tax and costs on the sale

If you are non-resident, the buyer withholds 3 percent of the price for the Spanish tax office.

- [ ] Capital gains tax worked out: purchase price plus costs and improvements against the sale price
- [ ] Renovation invoices kept: they reduce the gain
- [ ] Plusvalía municipal (local tax on the land value) worked out
- [ ] As a non-resident: the 3 percent withholding and how to reclaim it (modelo 210)
- [ ] Mortgage paid off and cancelled, with its costs
- [ ] Lawyer chosen who acts for you, not for the buyer



Torre del Mar

5. Renting out instead?

- [ ] Holiday rental: registered as a vivienda de uso turístico (VUT) on the Andalusian register
- [ ] Checked whether the town or community of owners restricts holiday lets
- [ ] Registration number in every advert
- [ ] Guests reported to the police or Guardia Civil (required)
- [ ] Rental income declared in Spain (and possibly at home)
- [ ] Insurance suitable for letting
- [ ] Rental management arranged: keys, cleaning, laundry and repairs

6. Around the handover

- [ ] Reservation contract (contrato de arras) with the right deadlines and deposit
- [ ] Agreement on what stays in the house: an inventory
- [ ] Meter readings taken and water, electricity and internet contracts transferred
- [ ] Keys, codes and manuals handed over
- [ ] Town hall, insurer and bank informed
- [ ] Tax return after the sale filed within the deadline



Nerja

7. Questions to ask

The estate agent

1. How did you arrive at this valuation?
2. What have you sold recently in this village, and for what price?
3. What is the commission, and is the contract exclusive?
4. How long does the contract run, and how do I cancel?
5. Where do you advertise, and in which countries?
6. Who handles viewings when I am away?
7. What do you suggest I fix before the sale?
8. Are you registered and insured?

Your lawyer or tax adviser

1. Does the land registry entry match what is there?
2. Do I need to legalise anything before I can sell?
3. How much tax will I pay on the gain?
4. Which costs and improvements can I deduct?
5. How do I reclaim the 3 percent withheld?
6. What will the plusvalía municipal cost?
7. Which papers do I need to rent out?
8. How do I declare rental income?

Getting the house ready to sell or let?

We have the house spruced up before the photos are taken and, if you let it, handle the management: keys, cleaning and repairs. With our trusted building partner in the Axarquía.

Ask us

axarquiahome.com/en/request/ · info@axarquiahome.com

This checklist gives general information and is not legal or tax advice. Rules differ by town and change; always ask a lawyer or adviser.